

VCU311884 Matthews, Vicki L vs. FCA US, LLC

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-20

Motion: Plaintiff's Motion to Strike or Tax Costs

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Re: Matthews, Vicki L vs. FCA US, LLC

Case No.: VCU311884

Date: July 20, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Plaintiff's Motion to Strike or Tax Costs

Tentative Ruling: To grant the motion in part, to deny the motion in part, and to award \$6,506.00 in costs.

Facts and Analysis

In this matter, the Court granted an unopposed summary judgment motion in favor of Defendant on December 1, 2025. Thereafter, on December 11, 2025, the Court entered judgment in favor of Defendant in this matter.

On December 9, 2025, Defendant filed its memorandum of costs, seeking \$9,487.89 in costs as follows:

Cost

Amount

Challenge by Plaintiffs?

1. Filing and Motion Fees

\$1,103.25

Yes

4. Deposition costs

\$5,308.50

Yes

16. Other

\$3,076.14

Yes

Total

\$9,487.89

The memorandum was served electronically on December 9, 2025.

On December 29, 2025, Plaintiffs filed this motion to strike all of the costs under the theory that Song Beverly provides a one-way fee and cost shifting statute in favor of a plaintiff that does not permit recovery by a defendant. Further, that, as to each category, Defendant has failed to provide receipts or invoices and failed to establish the costs are proper or reasonable. The motion also references recovery of fees of approximately \$20,000. However, the Court does not find a reference to fees in the memorandum of costs.

In opposition, Defendant objects to portions of the declaration, including the filing fee schedule attached in support of the motion. Defendant argues further that it is the prevailing party based on the granting of summary judgment in its favor, that Civil Code section 1794(d) does not contain any express statutory language precluding Defendant from recovery of costs as a prevailing party and that the costs claim are recoverable.

Authority and Analysis

Song-Beverly Cost Recovery

Plaintiff argues first that Song Beverly one-way, cost-shifting mechanism to allow only prevailing consumers to recover fees and costs. While Plaintiff cites to the California Supreme Court in *Murillo v. Fleetwood Enterprises, Inc.* (1998) 17 Cal.4th 985, the Court notes that *Murillo* affirmed that the prevailing seller could receive an award of costs under section 1032(b), reasoning that because the Song-Beverly Act “makes no mention of prevailing sellers[,] ... it does not expressly disallow recovery of costs by prevailing sellers.” (Id. at 991.)

Here, Defendant prevailed on its summary judgment motion and the Court finds that Defendant is the prevailing party entitling it to recover costs.

Motion to Tax or Strike Costs

“Unless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable.” (Cal. Rules of Court, Rule 3.1700(b)(2).)

Here, Plaintiffs' motion follows Rule 3.1700(b)(2) as to specific categories identified above in the chart and discussed in greater detail below.

The starting point is the verified Memorandum of Costs and Code of Civil Procedure section 1033.5. “[T]he verified Memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred” and the burden rests with the party seeking to tax costs to show they were improper, unreasonable or unnecessary. (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 855-856.)

Allowable costs under section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. An item not specifically allowable under Section 1033.5(a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if they meet the above requirements (i.e., reasonably necessary and reasonable in amount).

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Id.*) Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. (*Id.*)

“[T]he mere filing of a motion to tax costs may be a ‘proper objection’ to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face. [Citation.] However, ‘[i]f the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].’ [Citations.]” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.)

A party contesting costs must state why the contested item is objectionable. (California Rules of Court Rule 3.1700(b)(2)). Factual recitals rather than mere conclusions are required. Conclusory allegations that the item was “neither necessary nor reasonable” do not satisfy the objecting party’s burden. (*County of Ker v. Ginn* (1983) 146 Cal.App.3d 1107, 1113-1114; *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266).

1. Filing and Motion Fees

Here, Plaintiffs challenge the entirety of the filing and motions fees. Plaintiffs argue these fees are discretionary. However, these costs are expressly included by statute. (Code Civ. Proc., § 1033.5, subd. (a)(1).)

As to Plaintiffs' challenges to the amount of the costs based on the Court's fee schedule, this is not a basis to strike the entirety of the fee amounts. The Court, however, sustains the objection (No. 3) to the presentation of this document.

In opposition, Defendant provides invoices as to the fees incurred, noting that all fees in this category are for filing and motion fees. The Court notes, as to each invoice provided, there are various “E-FILING” charges over and above the base motion fees. Code of Civil Procedure Section 1033.5(a)(14) provides that “[f]ees for the electronic filing or service of documents

through an electronic filing service provider if a court requires or orders electronic filing or service of documents" are recoverable. Here, there is no requirement or order regarding electronic filing and therefore these costs are not expressly recoverable.

The Court's review of the costs collected in association with this matter from Defendant total \$1,035.

As such, the Court will strike \$68.25 from this category.

4. Deposition Costs

Plaintiffs seek to strike the entirety of the costs here.

Code of Civil Procedure section 1033.5(a)(3) expressly states that costs are allowable for: "taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed." (Code Civ. Proc., § 1033.5(a)(3)) (emphasis added.) "A prevailing party is entitled to the reasonable cost of taking depositions unless it appears that the taking of the depositions was unnecessary." (Ceranski v. Muensch (1943) 60 Cal.App.2d 751, 755). "Travel expenses to attend depositions" are also recoverable. (Code. Civ. Proc. §§ 1033.5(a)(3)(A)-(B).) "Determination of whether a cost is reasonable is within the trial court's discretion." (Thon v. Thompson (1994) 29 Cal.App.4th 1546, 1548.)

The memorandum reflects charges for video recording and transcribing necessary depositions. Here, the depositions taken were those of the Plaintiffs in this case, which the Court considers necessary.

Therefore, the Court will not strike these costs.

15. Other

Here, the costs sought to be recovered are as follows:

Expert's Review of Case Documents - \$225.00

Expert's Travel Time to and From Inspection - \$620.00

Expert's Performance of Vehicle Inspection - \$250.00

Videographer at Vehicle Inspection - \$1,420.00

Saed Atallah's Hotel for Travel to Inspection - \$120.04

Saed Atallah's Mileage to and from Inspection – \$278.60

Mediation with Grant Woodruff - \$162.50

Plaintiffs seek to strike all costs in this category.

As to the expert's costs, "Under Code of Civil Procedure section 998, 'if the plaintiffs reject a defendant's offer to compromise and then fail to win a more favorable judgment, the plaintiffs cannot recover their post offer costs and must pay the costs the defendant incurred after the offer' (Citation)" and that such costs include reasonable costs for expert witnesses under Code of Civil Procedure section 998(c)(1). (Duff v. Jaguar Land Rover North America, LLC (2022) 74 Cal.App.5th 491, 499.) Neither party discusses a section 998 offer, the time the offer was made, and when these expert costs were incurred in connection therewith. Therefore, the Court strikes the \$1,095 in costs sought related to an expert.

As to the videographer, hotel and mileage costs, these are not expressly permitted under section 1033.5(a), but such costs are also not expressly prohibited under section 1033.5(b). Under section 1033.5(c)(4), the court has discretion to award costs for items not specifically allowed nor prohibited, so long as they are "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Sanford v. Rasnick (2016) 246 Cal. App. 4th 1121.) The Court, in its discretion, will strike these costs, consisting of \$1,420.00, \$120.04 and \$278.60 as merely costs of convenience. The bare statements "FCA reasonably arranged for a videographer in connection with that inspection. FCA reasonably arranged an expert to inspect Plaintiffs vehicle" are insufficient to support recovery.

Likewise, mediation costs are not expressly recoverable, but such costs are also not expressly prohibited under section 1033.5(b). The Court, in its discretion, finds mediation reasonably necessary to the conduct of litigation. (Berkeley Cement, Inc. v. Regents of Univ. of Cal. (2019) 30 Cal. App. 5th 1133.)

Therefore, the Court will not strike the mediation costs.

As such, the Court strikes \$2,913.64 from this category.

Summary

Therefore, the Court awards the following costs:

Cost

Amount Sought

Amount Awarded

1. Filing and Motion Fees

\$1,103.25

\$1,035.00

4. Deposition costs

\$5,308.50

\$5,308.50

16. Other

\$3,076.14

\$162.50

Total

\$6,506.00

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.